

Control Number: [REDACTED]

JUSTIFICATION REVIEW DOCUMENT
FAR Part 13 Justification and Approval
Simplified Procedures for Certain Commercial Items

Program/Equipment: Procure SmartUQ 10.1 or higher statistical software licenses for Combat Capabilities Development Command - Armament Center (DEVCOM-AC) engineers and statisticians to include paid-up-front renewal and upgrade years.

Authority: Title 41 United States Code (U.S.C.) §1901(e)(2) as implemented in Federal Acquisition Regulation (FAR) 13.501(a)(1)(ii), sole source (including brand name) under the authority of the simplified procedures for certain commercial items.

Amount: [REDACTED]

Prepared by:

[REDACTED]
Acquisition Analyst

Phone: [REDACTED]

Date: 04 February 2026

E-mail: [REDACTED]

Contracting Officer:

[REDACTED]
Contracting Officer

Phone: [REDACTED]

Date: 23 January 2026

E-mail: [REDACTED]

Technical:

[REDACTED]
Statistician
-mail: [REDACTED]

Phone: [REDACTED]

Date: 04 February 2026

Requirements:

[REDACTED]
Statistician
E-mail: [REDACTED]

Phone: [REDACTED]

Date: 4 February 2026

Control Number: CAO-XX-XXXX

Reviews: I have reviewed this justification and find it adequate to support other than full and open competition.

Program Manager/Program Executive Officer:

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[REDACTED]
[REDACTED]
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Date:

Branch Chief:

[REDACTED]
Contracting Officer

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Signature: [REDACTED]

Date: 2/10/2026

Division Chief:

[REDACTED]
Supervising Contracting Officer

Phone: [REDACTED]
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[REDACTED]
Signature: [REDACTED]

Date:

Legal Counsel:

Typed Name: [REDACTED]
Attorney Advisor

Phone: [REDACTED]
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Signature: [REDACTED]

Date:

Control Number: [REDACTED]

FAR Part 13 Justification and Approval Simplified Procedures for Certain Commercial Items

1. Requiring Activity: U.S. Army Combat Capability Development Command – Armaments Center (DEVCOM-AC)

2. Contracting Activity: U.S. Army Contracting Command – New Jersey

3. Description of Action: The Combat Capabilities Development Command (DEVCOM) Armament Center requests authorization to award a firm-fixed price, noncompetitive contract to SMARTUQ, LLC, CAGE: 6ZV32, 3545 University Ave., Madison, WI 53705-2140 with a five-year ordering period. The contract will consist of a base year with four one-year options to include FAR 52.217-8. The contract will be fully funded using appropriate Fiscal Year (FY) 2026 Research, Development, Test and Evaluation (RDT&E) funds.

4. Description of Supplies/Services: The SmartUQ 10.1 or higher software requirement is necessary to support DEVCOM-AC mission with SmartUQ software licenses as well as associated support which includes patches, updates, and maintenance. This requirement includes 4 option years for renewals.

The contractor shall electronically provide DEVCOM-AC with 13 LAN licenses [REDACTED] of their software, SmartUQ Pro 10.1 or higher. This access shall be available continuously without interruption at Picatinny Arsenal. The following Customer Support shall be provided:

4.1. SmartUQ shall provide license keys and support to DEVCOM-ACs [REDACTED] Information Technology (IT) Helpdesk personnel related to installation of licenses on individual users' systems and troubleshooting installation remotely.

4.2. SmartUQ will provide software-related technical support and version updates for a period of 1 year and continue annually as per option years.

4.3 SmartUQ will also provide technical statistics-related support with the implementation of UQ techniques via the SmartUQ statistical software.

Item	Quantity	Delivery Date	Estimated Unit Price	Estimated Value (Inclusive of options)
SmartUQ 10.1 or higher Licenses, Maintenance and Support	13	05 Feb 2026	[REDACTED]	[REDACTED]

Control Number: [REDACTED]

Period of Performance: Software licenses and support shall remain active for a base period of 12 (twelve) months from date of contract award plus four (4) option years.

Period	Period of Performance (POP)	Estimated Value
Base	28 February 2026 to 27 February 2027	[REDACTED]
Option 1	28 February 2027 to 27 February 2028	[REDACTED]
Option 2	28 February 2028 to 27 February 2029	[REDACTED]
Option 3	28 February 2029 to 27 February 2030	[REDACTED]
Option 4	28 February 2030 to 27 February 2031	[REDACTED]
Estimated Overall Total Price		[REDACTED]

5. Authority Cited: Title 41 U.S.C. §1901(e)(2) as implemented in FAR 13.501(a)(1)(ii), sole source (including brand name) under the authority of the simplified procedures for certain commercial items. Sole source (including brand name) justifications shall be prepared using the format at FAR 6.303-2, modified to reflect that the procedures in FAR subpart 13.5 were used in accordance with 41 U.S.C. 1901 or the authority of 41 U.S.C. 1903

6. Reason for Authority Cited: As described at FAR 6.302-1(a)(2) when the supplies or services required by the agency are available from only one responsible source, or, for DoD, NASA, and the Coast Guard, from only one or a limited number of responsible sources, and no other type of supplies or services will satisfy agency requirements, full and open competition need not be provided for. As further described in FAR 6.302-1(c), an acquisition or portion of an acquisition that uses a brand-name description or other purchase description to specify a particular brand-name, product, or feature of a product, peculiar to one manufacturer does not provide for full and open competition, regardless of the number of sources solicited; and shall be justified and approved in accordance with FAR 6.303 and 6.304.

This requirement must be accomplished through a sole source solution. The authority as noted above applies because there is no other brand of statistical software available to meet DEVCOM-AC requirements and no other brand can be modified to meet those requirements.

a) Background: SmartUQ is developed by SmartUQ, LLC and is currently the sole vendor of annual licenses for current versions of SmartUQ Statistical Software.

1) SmartUQ has been and is currently being used by DEVCOM-AC for engineering statistical analysis, design of experiments, and uncertainty quantification activities. SmartUQ is widely used to design efficient statistically sound modeling and simulation experiments within the test and evaluation community and has seen broad success when used by statisticians in the past. SmartUQ enables analysts to more effectively utilize and gain useful information from complex modeling and simulation

experimentation. This saves and will continue to save the government significant cost in physical testing as well as reduce schedule and program risk when making design decisions. The software is used broadly across multiple commodities and programs, as well as in-house training.

2) No other commercial corporation offers SmartUQ statistical software. Only SmartUQ was found to offer the features necessary for DEVCOM-AC workforce implementation of a wide variety of uncertainty quantification techniques. These features include, but are not limited to, design of experiments for deterministic and/or low noise computer simulations, emulation of computationally intensive models, statistical model calibration, sensitivity analysis, uncertainty propagation, and inverse analysis. Other software such as [REDACTED] and [REDACTED] do not offer these options. There is only one source, SmartUQ, LLC, which can provide the full version of SmartUQ. Purchasing through another source is not possible because SmartUQ, LLC is the only U.S. distributor of SmartUQ software products.

b. Alternatives: Utilization of other software packages is always a factor to ensure the best fit for the Army's mission. SmartUQ has consistently demonstrated that it is the superior tool for meeting the Government's present needs. SmartUQ is the first commercial tool specifically designed for industry-scale Uncertainty Quantification (UA). Its proprietary software offers a unique and necessary combination of emulation, machine learning, sensitivity analysis features, design of experiments for deterministic and/or low noise computer simulations, emulation of computationally intensive models, statistical model calibration, uncertainty propagation, and inverse analysis that no other vendor can provide. Other software such as [REDACTED] and [REDACTED] does not offer these required options. There is only one source, SmartUQ LLC, which can provide the full version of SmartUQ software because they are the only authorized distributor in the U.S. It is not feasible to use in-house resources to develop a custom software package solution to replace SmartUQ. Our in-house Government teams do not have the specialized expertise to develop a comparable tool and doing so would be prohibitively expensive and time-consuming. In contrast, SmartUQ is a proven solution with a track record of saving customers millions of dollars and thousands of work hours, making it more reliable and valuable choice. An in-house solution would lack this demonstrated history of success and would bring significant risk.

c. Impact if not approved: The impact would be significant. If not approved, programs that rely on uncertainty quantification would need to rely on [REDACTED] for experimental design that would require more time spent conducting modeling and simulation as well as live testing. Also, the final predictions of optimum designs would be based off [REDACTED] potentially risking [REDACTED]. In addition, there would be a loss of time, decreased performance, and significant costs associated to re-work. This would require additional time and effort

for research and analysis of alternative software solutions that have already been eliminated from competition due to their inability to meet Government needs.

7. Efforts to Obtain Competition: The Contracting Office shall publish the notices required by FAR 5.201 and any bids or proposals received shall be considered. However, no other opportunities exist because the SmartUQ Software only has one authorized distributor, SmartUQ, LLC.

- a. Effective competition: Effective competition is not anticipated for this action.
- b. Subcontracting competition: Due to the nature of the requirement, the Government does not anticipate subcontracting opportunities.

8. Actions to Increase Competition: Full and Open competition is not feasible at this time due to the lack of capable sources. During the initial search, extensive research was conducted. Current research and confirmations with the OEM (original equipment manufacturer) indicate there is no competition for this requirement at this time. When originally choosing the solution, it was understood that the path forward for future efforts would be sole source until a demonstrably better software is developed to better support government requirements. The Government will continue to conduct market research on an annual basis in an effort to find viable competition and in accordance with FAR 5.201(b), future requirements will be synopsized. If other authorized SmartUQ sellers are found, or an alternate software application has emerged with the capability to meet the Government's requirement for complex modeling and simulation experimentation, competition will be provided to the greatest extent possible.

9. Market Research: In accordance with FAR 10.001 and FAR 12.202, the requiring activity conducted market research during the summer and fall 2025 through searches on the internet, GSA, and Computer Hardware, Enterprise Software and Solutions (CHESS). This research found that SmartUQ, LLC remains the only distributor of SmartUQ Statistical Software and there is no other software available that can meet the Government's modeling and simulation requirements.

As previously indicated, SmartUQ, LLC is the only vendor found that legitimately supplies SmartUQ software and support. The software licenses will be purchased and maintained in future years as it is less expensive than leasing the product in the long term.

- During the initial acquisition a Sources Sought Notice (SSN) was submitted by ACC-NJ which closed on 20 December 2019. There were 2 respondents, and one of them was SmartUQ, LLC while the other – [REDACTED] was a reseller of SmartUQ's software and didn't meet requirements for licenses [REDACTED]. This has not changed.
- Sources Sought Notice W15QKN26X1B3L was posted on SAM.gov from 15 January 2026 to 22 January 2026. Three sources responded: [REDACTED], [REDACTED]

Control Number: [REDACTED]

and [REDACTED], which were not deemed capable.

- Contacted knowledgeable people (Government and industry) in specific markets.
- Queried Government databases (FPDS-NG, PPIRS, CPARS, GSA, SAM.gov, SBA databases, e-Portals in Commerce (e-PIC), Contract Management in Research Tool in ASFI etc.) that provide relevant information on acquisitions.
- Used Internet tools and perform Web searches.
- Reviewed catalogs and literature published by service providers.
- Reviewed Federal Supply Schedule contracts, and other Government contracts. A review of the GSA Schedules 70:132 32, GSA Advantage and e-buy as well as the CHESSE Enterprise Software Initiative (ESI) web sites to determine if there were any authorized resellers of SmartUQ Pro 10.1 or higher confirmed there is only one capable source. SmartUQ, LLC is the only vendor that will sell their product.

10. Interested Sources: To date, no other sources have written to express interest.

11. Other Facts:

a. Procurement history.

<i>Contract Number</i>	<i>Contractor</i>	<i>Procurement Method</i>	<i>Amount (est.)</i>	<i>Period of Performance</i>
<i>W15QKN-21-P-0027</i>	<i>SmartUQ, LLC</i>	<i>Sole Source FAR 6.302-1(a)(2)</i>	[REDACTED]	<i>5 February 2021 through 4 February 2026</i>

1) Contract Number W15QKN-21-P-0027 was awarded to SmartUQ, LLC on 5 February 2021 for these same requirements.

2) The competitive status of this action is Other than Full and Open competition.

3) The previous J&A Authority that was used is 41 U.S.C. 1901 as implemented by FAR Subpart 13.5, Other: Brand Name.

4) No prior contracts for this requirement have been issued using Full and Open Competition or Full and Open Competition after Exclusion of Resources.

5) There are no unusual patterns or urgent buys throughout the history of this program.

6) There have been no protests received for previous requirements.

b. Other facts. There are no other facts in support of this requirement not previously stated in the justification.

Control Number: [REDACTED]

12. Technical Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

Statistician

13. Requirements Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

Statistician

14. Fair and Reasonable Cost Determination: I hereby determine that the anticipated price/cost to the Government for this contract action will be fair and reasonable. This determination will be made using the Independent Government Estimate (IGE) and reflects the pricing trends of the market research. As a part of this basis, certified cost or pricing data is not required because the item and/or services being acquired are considered commercial and in accordance with FAR 15.403-1(b)(3). To determine the fair and reasonableness of the proposed prices, a comprehensive price analysis will be used IAW FAR 15.404-1(b)(2)(ii) comparison to proposed prices received to historical prices paid for the same or similar items.

[REDACTED]

[REDACTED]

Contracting Officer, CCNJ-JA

15. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

Contracting Officer, CCNJ-JA